

24VECV04270 24VECV04270

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-06-25

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Case Number: 24VECV04270 Hearing Date: June 25, 2026 Dept: NWI

24VECV04270 DEBORAH NUNEZ vs KIA

AMERICA, INC., A CALIFORNIA CORPORATION

June 25, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel Further

Discovery

I.

Background

On September 5, 2024, Plaintiff

Deborah Nunez aka Deborah Abigail Nunez (“Plaintiff”) filed a complaint against Defendants Kia America Inc. (“Defendant”) and Does 1 to 10 alleging one cause of action for violation of Song-Beverly Act – breach of express warranty.

On March 26, 2026, Plaintiff filed the

instant motion to compel Defendant’s further responses.

On June 11, 2026, Defendant filed its opposition.

On June 17, 2026, Plaintiff filed her reply.

II. Motion

to Compel Further Discovery

"If a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance." (Cal. Code of Civ. Proc. § 2031.320(a).)

". . . [T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP § 2031.320(b).)

Analysis

Plaintiff brings this motion on the grounds that "Defendant agreed to produce in its July 11, 2025, Amended Responses to Plaintiff's First Set of Requests for Production Nos. 4, 7 and 15 . . . but failed and refused to produce documents evidencing [Plaintiff's certified pre-owned vehicle] warranty." (Motion at 1:3-8.)

Plaintiff states that, on May 5, 2025, "Defendant served an 892 page pdf of non-confidential documents and a 114 page pdf of documents it labeled confidential. Nowhere in this production did Defendant produce the certified pre-owned vehicle warranty it issued for the Subject Vehicle." (Id. at 2:2-6.) Notably, Plaintiff's Requests for Production of Documents requested "[a]ll [documents] which evidence any sale contracts, lease agreements, service contracts, service agreements, and warranties on the SUBJECT VEHICLE." (Id. at 2:24-3:3.) Defendant agreed to production of these documents. (Ibid.)

In opposition, Defendant argues that "because responsive documents were produced on July 11, 2025, Plaintiff's Motion is not properly a motion to compel compliance brought under [CCP] § 2031.320, but rather, is a motion to compel further responses under CCP § 2031.310. Consequently, the Motion – which was filed nearly ten (10) months after Defendant's production and is not supported by a declaration evidencing

good cause or any effort to meet and confer – is both untimely and improper.” (Opposition at 2:16-21.) Defendant further argues that the certified pre-owned warranty (hereinafter the “Warranty”) is in control of an independent third-party, the JM&A Group. (Id. at 3:1-7.)

The Court finds that CCP § 2031.320 is the applicable law. CCP § 2031.310 seeks to compel further responses after a responding party objects to requests or “[a] representation of inability to comply is inadequate, incomplete, or evasive.” (See CCP § 2031.310(a).) Here, Defendant did not object to production of the Warranty; instead, Defendant agreed to produce the Warranty but failed to do so. (See Motion at 2:24-3:3.) Therefore, CCP § 2031.320 applies since Defendant agreed to produce the Warranty but “thereafter fail[ed] to permit [its] inspection, copying, testing or sampling in accordance with [its] statement of compliance . . .” (CCP § 2031.320(a).)

Defendant also argues that it did not specifically agree to produce the CPO Warranty, but instead agreed to produce “‘all documents’, including warranties related to the Subject Vehicle in the most general of terms.” (Opposition at 7:1-4.) “In response to Plaintiff’s Requests, Defendant promised to produce, and did produce, ‘all documents or things in the demanded category that exist and are in its possession, custody or control.’ The CPO Warranty was not issued by Defendant, and is not a document within Defendant’s possession custody or control.” (Id. at 5-13.) Defense counsel further declares that “[he] has had multiple contacts with representatives of both Van Nuys Kia and JM&A Group seeking to obtain a copy of [the Warranty], or documents related thereto. Despite my efforts, I have not been able to obtain a copy of the CPO Warranty.” (Kreshek Decl. ¶ 13.)

The Court finds that Defendant must produce the Warranty or produce a verified representation of inability to comply that satisfies CCP § 2031.230. Specifically, the representation must: (1) affirm that a diligent search and reasonable inquiry has been made in an effort to comply with the demand; (2) specify whether the inability is because the item never existed, has been destroyed, lost, misplaced, stolen, or is no longer in the party’s possession, custody, or control; and (3) set forth the name and address of any natural person or organization known or believed to have possession, custody, or control of the item. (See CCP § 2031.320.) This statement must be genuine and complete, not vague or conclusory. (Manlin v. Milner (2022) 82 Cal.App.5th 1004.)

Sanctions

CCP § 2031.320(b) imposes a monetary sanction against any party who unsuccessfully opposes a motion to compel compliance with a demand. (See CCP § 2031.320(b).) Here, Defendant agreed to provide all applicable warranties regarding the Subject Vehicle. (See Motion at 2:24-3:3.) Defendant failed to provide a satisfactory statement of inability to comply regarding the CPO Warranty. Therefore, sanctions are justified.

Plaintiff requests sanctions in the total amount of \$2,737.50, representing \$60.00 in filing fees and 5.1 hours of attorney work at an hourly rate of \$525. (See Thomas Decl. at ¶¶ 19-21.) The Court finds this amount reasonable.

III. Conclusion

Based on the foregoing, Plaintiff's motion is GRANTED.

Defendant is to produce the certified pre-owned warranty, or a statutorily compliant statement of inability to comply, within 20 days of this order.

Additionally, Defendant and its counsel, jointly and severally, are to pay Plaintiff's counsel sanctions in the amount of \$2,737.50 within 20 days of this order.

Moving party to give notice.